

		Counsel for Plaintiff to give notice.
10	Back Bay Westminster, LLC v. Professional Real Estate Center, Inc. et al	Before the Court at present is the Demurrer filed by defendants Kevin Conklin and Back Bay Development LLC (collectively here, as moving parties, "MPs"), as to the Third and Fourth Causes of Action (each a "COA") asserted in the FAC filed by Plaintiff Back Bay Westminster, LLC ("Plaintiff") on 4/18/23. The Demurrer is SUSTAINED with 15 days leave to amend on COAs 3 and 4, as both COAs lack the requisite specificity for such claims. On a fraud claim, every element must be alleged in full, factually and specifically, including facts that show how, when, where, to whom, and by what means the representations were tendered, and when alleged against an entity, the names of the persons who made the misrepresentations, their authority to speak for the corporation, to whom they spoke, what they said or wrote, and when it was said or written. (<i>Lazar v. Sup. Court</i> (1996) 12 Cal.4th 631, 638, 645; <i>Philipson & Simon v. Gulsvig</i> (2007) 154 Cal.App.4th 347, 363; <i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Here, COA 3 again just vaguely asserts at ¶ 38 that multiple defendants represented that "there was no written Residential After Sale Agreement with the seller and there were no encumbrances and/or issues pertaining or relating to the real property." That plainly fails to adequately specify who said what, how, when, where, to whom, and by what means the alleged misrepresentations were tendered. Which of them said what, to who, when? Orally, or in a writing? And in what context – responding to a specific question, or something else? This COA also seems to be attempting to assert some amalgam of a concealment claim and an affirmative misrepresentation claim, without identifying the specifics as to which is asserted against each particular defendant and why. The circumstances which allegedly warranted justifiable reliance also lack adequate specificity. The Demurrer as to COA 3 is therefore SUSTAINED, with 15 days leave to amend. COA 4 similarly lacks adequate specificity. A plaintiff alleging unfair business practices must state with reasonable particularity the facts supporting the statutory elements of the violation. (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 619.) Here, COA 4 just vaguely asserts at ¶ 52 that the prior allegations are the basis for the claim. The Demurrer as to COA 4 is therefore also SUSTAINED, with 15 days leave to amend. Counsel for MPs is to give notice of this ruling.
11	Lopez v. Bock	O/C
12	Nijst v. Anaheim Global Medical	The Motion for Summary Adjudication filed by Plaintiff Christopher Nijst by and through his guardian ad litem, Susan Russell ("Plaintiff") is DENIED.